

Why is Indian society so far from being Inclusive? Will there ever be a safe place for the LGBTQ+ Community? (By Krishna)

- **INTRODUCTION-** In, today's date if we talk about the matter is that on paper India is progressing in this matter as after the Supreme court judgement of 2018 on the striking down of IPC Section 377 which was a huge and a much needed step as it de-criminalized the same sex relationships and the LGBTQ+ relationships providing them freedom and basic right of freedom to live as they are. But that is not what is all needed after even decriminalizing it on paper, we still haven't accepted them. The people of India haven't accepted them as a proper community or as a community of their own. Inclusivity is a topic to be discussed later. The thing is that in some places, the basic human rights are also not being given to them. The right to equality in the workplace is breached, and Studies reveal that 70% of LGBTQ+ employees in India have experienced non-inclusive behavior at work, including homophobic jokes, isolation, and denial of opportunities, significantly higher than global averages. It was a basic, small example of what level of discrimination done to the people of this community in India. In this blog we will discuss about the mindset of the people of India who are one side going in the way of modernization and AI but have the same old non acceptant mindset for this community of people even if it has been described in many ancient hindu texts for reference in Mahabharata [Shikhandi](#), who is sometimes said to be born as a female but identifies as male and eventually marries a woman. [Bahuchara Mata](#) is the goddess of fertility, worshipped by *hijras* as their patroness. But as I now talk about the inclusivity, we are so far from inclusivity as we see each day. No official daily case count exists for LGBTQ+ discrimination in India. High prevalence of violence and discrimination is documented through surveys and studies. Many incidents go unreported due to fear and stigma. All of this needs to be changed, and to make this community a normal gender community like how the male and female community has been for the past thousand years. Before all this change and LGBTQ+ community, we even had the hijras community, which also felt discrimination but were also respected through ancient Hindu culture too. Still, the main

discrimination and negative mentality towards the LGBTQ+ community also came because of the exposure and growing hate and support of people who have extreme views regarding the LGBTQ+ Community. The negative side of Social Media became the main reason for the growing hate towards the people of this community.

HISTORY- Before we understand what is actually happening in the country right now about this community, before we comment about the future, let us analytically discuss the past, or the History of this Community from back before to ancient times.

In ancient times, there were no legal restrictions on homosexuality or transsexuality for the general population before the early modern period and colonialism. However, certain dharmic moral codes^[which?] forbade [sexual misconduct](#) (of both heterosexual and homosexual nature) among the upper class of priests and monks, and religious codes of foreign religions, such as [Christianity](#) and [Islam](#), forbade homosexuality among their followers.

In Hinduism, [Hinduism](#) describes a [third gender](#) is described that is equal to other genders, as documented in ancient Hindu and [Buddhist](#) medical texts.^[22] The term "third gender" is sometimes viewed as a specifically South Asian term, and this third gender is also found throughout South Asia and East Asia.

The [Nāradaśmṛti](#) and the [Sushruta Samhita](#), two important [Sanskrit texts](#) relating to [dharma](#) and [medicine](#), respectively, declare homosexuality to be unchangeable and forbid homosexuals from marrying a partner of the opposite sex.^{[27][28]}

The Nāradaśmṛti lists fourteen types of *panda* (men who are impotent with women); among these are the *mukhebhaga* (men who have oral sex with other men), the *sevyaka* (men who are sexually enjoyed by other men), and the *irshyaka* (the voyeur who watches other men engaging in sex).

The [*Kama Sutra*](#), a [Sanskrit](#) text on [human sexuality](#), uses the term *tritiya-prakriti* to define men with homosexual desires and describes their practices in great detail.^[30] Likewise, the *Kama Sutra* describes lesbians (*Svairini*, who engage in aggressive lovemaking with other women), bisexuals (referred to as *kami* or *paksha*), transgender and [intersex](#) people. The Hindu [Khajuraho temples](#), famous for their erotic sculptures, contain several depictions of homosexual activity.

During the British Empire, the British criminalized any homosexual activity that was enacted under [Section 377](#) by the British, which stood for more than 70 years after [Indian independence](#). The [Goa Inquisition](#) once prosecuted the capital crime of [sodomy](#) in [Portuguese India](#),^{[51][52]} but not lesbian activity,^[53] whereas the [British Raj](#) criminalised [anal sex](#) and [oral sex](#) (for both heterosexuals and homosexuals) under Section 377 of the [Indian Penal Code](#), which entered into force in 1861, and made it an offence for a person to voluntarily have "carnal intercourse against the order of nature". Scholars have also argued that the original intention of Section 377 was to act as a means by which the British Raj could further police and control the body of the colonial subject. In colonial [Victorian era](#) morality, these subjects were seen as erotically perverse and in need of imposition.

In 1884, a court in north India, ruling on the prosecution of a *hijra*, commented that a physical examination of the accused revealed she "had the marks of a habitual [catamite](#)" and commended the police's desire to "check these disgusting practices".^[56] In 1871, the British labeled the *hijra* population as a "criminal tribe".

THE LEGAL PROGRESSION- About the legal progression after such a long history related to the this community from the ancient India was stopped right after the British control era on India as they considered it actually a criminal activity and later on after post-independence there were many cases which were on this revolution to atleast stop the

criminalization of same sex relationships or the progression of these genders in the LGBTQ+ Community, one of the main cases was the 2018 case of Navtej Singh Johar v. Union of India which marked a watershed moment, declaring Section 377-(Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with [imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine," with the added explanation that: "Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section."^l ["India: The Indian Penal Code". Wipo.int.](#)) unconstitutional for violating fundamental rights to privacy, dignity, and autonomy. Justice Indu Malhotra's assertion that "history owes an apology to the LGBTQ+ community" underscored the judiciary's recognition of historical injustices While same-sex relationships are no longer criminalized, LGBTQ+ individuals remain excluded from marriage equality, adoption rights, and anti-discrimination protections in workplaces or housing but this is in front of law on-papers. The reality hasn't changed that much as the position in on-ground cases remains the same. Actually in the making of this Legal framework the media or sometimes we miss the 2014 case where it all caught an eye in the eyes of law in specifics, the case of - Supreme Court in the 2014 *NALSA v. Union of India* mostly we would find that the in the Indian history regarding the LGBTQ+ community and legal aspect we will find the 2018 case a significantly important case but we just put a blind eye that how much this case was important....in my study to write this article I found out that this case was one of the major cases which let the community to be recognized as the third gender. But the judgment lacked a dedicated legislative framework. Now coming back to the act of 2019, which came as the need of legal farm work and protection of Rights for the LGBTQ+ community was important, as there were no rights that existed for the third gender, like for the other two genders, their rights existed. Some of the rights are here as below :

Legal Recognition of Identity: The Act provides a mechanism for transgender persons to obtain a "certificate of identity" from the district magistrate, which allows them to have their self-identified gender legally recognized on official documents. This was intended to empower transgender individuals to live with dignity and access rights aligned with

their gender identity, although the Act controversially requires medical procedures for changing gender markers in some cases.

Welfare and Healthcare Provisions: The Act mandates the government to create transgender-sensitive welfare schemes, provide medical facilities, including sex reassignment surgeries, and ensure access to health insurance coverage for transgender-related healthcare.

Addressing Gaps Left by Earlier Judgments: The 2014 *NALSA* judgment had recommended affirmative actions such as reservations in education and employment for transgender persons and recognized the right to self-identify gender without surgery. The 2019 Act, however, did not incorporate these recommendations fully, leading to criticism from activists who felt it diluted the Supreme Court's progressive directives.

Institutional Framework: The Act provides for the constitution of a National Council for Transgender Persons to advise the government and monitor policy implementation

GLOBAL PROGRESSION vs INDIAN DELAYS- In the West the first country to legalize same-sex marriage was the Netherlands, and it was in 2001, which set a precedent for 30+ Nations.

The U.S. Supreme Court decriminalized consensual same-sex acts in *Lawrence v. Texas*, a case of 2003, overturning archaic sodomy laws.

The U.S. legalized same-sex marriage nationwide via *Obergefell v. Hodges*, a case of 2015 U.S Supreme Court case, affirming dignity and equality under the Fourteenth Amendment.

These decisions were driven by progressive judicial interpretations, robust activism, and shifting public opinion. By 2023, over 1.3 billion people globally lived in jurisdictions recognizing same-sex marriage.

Above we talked about the Global progression or I would say progression related to the LGBTQ+ Community was at a good speed as the world needed which helped them to end their revolution in the west at least leading them to live a simple and happy life as they ever wanted, a life in which their existence was recognized. Now, after talking about the global change regarding this topic, we will move on to where India started, and how India was still late, and how it was impacted. We've learned about the basic timeline of legal progression regarding the history of India.

The Supreme Court's *NALSA v. Union of India*, a case of 2014, recognizes transgender people as a "third gender" but fails to enforce practical protections.

The Supreme Court's *Navtej Singh Johar vs. Union of India*, a case of 2018, A five-judge bench unanimously struck down Section 377, affirming LGBTQ+ rights to equality, privacy, and sexual autonomy. Justice D.Y. Chandrachud noted, "The colonial law had become a weapon for harassment.

Now we will understand where and actually why India lagged:

- **CASTE HIERARCHIES- Honor-Based Violence:** Families often subject LGBTQ+ members to corrective rape, forced marriages, or disinheritance to uphold caste and community "honor." **A 2023 study found 68% of queer Indians face familial abuse.**
- **Caste and Queerphobia:** Dalit LGBTQ+ individuals experience compounded discrimination. In one Delhi case, a Dalit gay man was gang-raped while attackers hurled casteist slurs.
- **Hindu Nationalist Rhetoric:** Leaders like Subramanian Swamy claim homosexuality is "unnatural" and against Hindu ethos, despite ancient texts acknowledging fluid identities.
- **Islamic and Christian Opposition:** Conservative clerics equate queerness with sin, pressuring policymakers to resist reforms.

- **Criminalization Bias:** Police continue harassing LGBTQ+ individuals using vague laws like “public nuisance”.
- **Lack of Legislative Initiative:** No political party has introduced comprehensive anti-discrimination bills, fearing backlash from conservative voters.

Now, above we’ve talked about all the history and all related to the Legal Progression. Now, if I talk about the problems still faced by the Indian community of LGBTQ+ people so then we will highlight the Grindr Case, which happened in India between 2023 and 2025

Timeline of Grindr-Related Cases in India

In August 2023, Kanpur Police arrested 6 Students for Blackmailing Gay men via the Dating app.. Six students aged 19 to 22 were arrested for luring individuals through the gay dating app Blued, filming inappropriate videos, and blackmailing victims for money. One victim was stripped, filmed, and extorted for ₹25,000.

Another case in August 2024, after nearly a year, this time it was in the Madras High Court. The Madras High Court raised concerns over **Grindr’s** misuse in facilitating offences. The court noted that Grindr was being used for illegal activities, including sexual abuse and robbery. The court directed police to report the app’s misuse to the Ministry of Electronics & Information Technology and consider appropriate action, including possible blocking.

Well, this above case was a good step taken by the court, rt still things didn’t change that much as,

In the same month of August in Surat City, an extortion case for 1.8 lakh Rs was reported. A 35-year-old diamond planner from Kamrej, Surat, was extorted of ₹1.8 lakh by four men after being lured through **Grindr**. The victim was

coerced into undressing and secretly recorded, then blackmailed for money. Police arrested two suspects and continued efforts to apprehend others.

Then, after just a month, in September 2024, Noida Police arrested two Men for Blackmailing via **Grindr**. Two men were arrested for creating fake profiles on **Grindr** to lure victims, secretly recording intimate encounters, and extorting money by threatening to expose them.

After a month, in April 2025, Chennai gangs use the **Grindr App** to Honeytrap and rob a Student. A seven-member gang used Grindr to lure a 20-year-old college student, robbing him of ₹10,000, a smartphone, and a gold bracelet. The gang recorded a video of the victim after stripping him and blackmailed him for ₹5 lakh. Police arrested seven gang members, who had targeted nearly 30 victims over three years.

In the same month of April 2025, a big step was taken by the Chennai Police, seeking a Ban On **Grindr** over Drug Trafficking. The Chennai Police Commissioner requested the Indian Computer Emergency Response Team to suspend or **ban Grindr** after investigations revealed the app was used in methamphetamine trafficking. **Police seized 21.9 kg of crystal meth** linked to drug rings operating through **Grindr** profiles. The syndicate involved foreign nationals and local police complicity.

After just a month in May 2025, which was notably the previous month, the Greater Noida police have reported an arrest of 4 men for extortion via **Grindr**. Four men were arrested for luring victims through **Grindr**, threatening them with weapons, and extorting large sums of money. The gang had been active for nearly a year and targeted 20–25 people.

What happened in these **Grindr** Cases is that certain Criminals created fake profiles to lure gay men to secluded locations and then do extortion. The victims got assaulted, robbed, blackmailed with threats of putting it up on social media, the **Grindr app** was also been reported for drug trafficking and distribution like meth and other drugs, the victims of those assaults often avoided reporting due to fear of stigma. Law enforcements had made multiple arrests but still the concern was about the misuse of app in many ways, they even took steps to regulate the activities and even tried to ban the app, after taking so much steps it still made it difficult for gay men to date on the app as at many places they were

scared not to meet as they got to know about the assault cases happening and the credibility of the profiles that if they are fake or not.

Law enforcement often blames victims, with 65% of LGBTQ+ individuals reporting police refusal to file complaints. The proposed Grindr ban, rather than addressing root causes, risks further marginalizing the community.

Why India Lags in Inclusivity- I think that the British Morals and the old mindset has still been embedded in the people of India and they still the old or we can say Orthodox mindset against the people of LGBTQ+ Community a survey founds that **37% of Indians still view homosexuality as morally wrong**, with opposition concentrated among older, religious demographics. Also other surveys say that **the LGBTQ+ individuals face familial abuse, which is 73%, and many are coerced into heterosexual marriage, the figure goes to over 52%**, which is not shocking when we hear about these kind of cases daily and keeping in mind that many of these cases never gets reported.

Even after the decriminalization in 2018 and introduction of rights for the community in 2019, the community is still facing a lack of protection in employment, housing, or education. **A study done in 2022 reveals that 68% of queer employees face workplace harassment, with no legal recourse.**

Another barrier to inclusivity is, same sex couples cannot legally marry in the eyes of the law, which actually takes away their many rights and takes a part of their identity and even the commitment symbol; they can't even legally adopt children, even if they belong to their community or a normal person. It makes them different or keeps them away from being inclusive in society.

The economic marginalization and look down did a lot of bad effects as Hijras and transgender individuals are systematically excluded from formal economies. **Over 56% of hijras live below the poverty line**, reliant on begging or sex work due to employment discrimination. Government schemes like the 2019 Transgender Welfare Board remain underfunded, **with only 12% of allocated funds utilized by 2023.**

Medical curricula omit LGBTQ+ health needs, leading to discrimination. A 2021 survey found **40% of transgender patients denied care**, while **63% of gay men avoid disclosing their sexuality to doctors**. Mental health crises proliferate, with suicide rates among queer youth four times higher than the national average.

Despite the WHO declassifying homosexuality as a disorder in 1992, Indian medical curricula still frame it as a disease. **A 2021 survey found 40% of psychiatrists attempting “conversion therapy,” often endorsed by families.**

After knowing why and where India lags in inclusivity, we have to take steps so that the problems that are currently faced by this community stop now, or the fight for them will never end. Inclusivity is very important, ass on paper or legally decriminalizing doesn't make it up enough for the whole, which has happened. We need to normalize this and create a good working environment, a living environment, for every person of every religion.

SOLUTION PATHWAY- All these problems, which are till this time were faced by the people of the LGBTQ+ community. This made a big impact on them anywhere and everywhere. Now, if I talk about the pathways to solve these problems, which are faced, and to increase inclusivity, these are the steps we would have to take to improve the conditions:

Strict anti-discrimination laws should be there, and discrimination based on sexual orientation and gender identity of a person should not be there in any where, like employment, education, healthcare, housing, and public services. Legal recognition of same-sex marriage should be there, allowing same sex marriage will increase the inclusivity and would increase equality and a place in the Indian society. Courts and the judicial system in India can have sensitization measures and should push for the inclusion of the LGBTQ+ Community. Schools and colleges should include gender and sexuality education to dispel myths, reduce stigma, and foster empathy from a young age. Government and civil society should run campaigns to normalize LGBTQ+ identities and combat social prejudices. Like I would say, NGOs could provide a big help. And the government should also provide support.

Cities should design public spaces more LGBTQ+ friendly, like to make washrooms more third gender friendly.

NGO collaborations should be done more like the Government can take the help of NGOs to reach out to the people or help the people of the LGBTQ+ Community who are in need of help.

We need to encourage more dating apps for people of this community, ensuring that things don't go wrong, which did go wrong with apps like Grindr; these dating apps need to be regulated more.

This is what we can do, what the people of LGBTQ+ Community can do is to own it and ask for their rights at work place, education, public places, the basic human rights for them is there right and not just their, its right of every person, more importantly inclusivity will come from outside and other people if you'll own it. We still have many cases where the victims of the cases from this community don't own it and prefer not to say about their gender.

CONCLUSION- Now, here I would like to conclude this blog on the LGBTQ+ Community. I used many sources for doing research, and this blog is the compilation of my research. The LGBTQ+ community has faced many problems in India related to inclusivity in the Indian Society, things in past years has been changing, I know our country was late, it was really a disaster for this as many problems were there basically before 2018 even the LGBTQ+ or being recognized as an individual of this community was criminalized but the situation changed, i know, just changing in law doesnt mean that the indian mindset will also change, we all know that it will take time for the indian society to change and we are taking steps to change and include this community into the society, right equality for everyone is basic the gender doesnt matter in this context, in this blog starting from the history i told you about how the struggle of this community has been even highlighting the grindr case which played a huge part as it is a place for date for gay men (a gender of the LGBTQ+ Community) and if we dont even have a safe space for them and it is used for assault against them then how are we going into inclusivity, but good to look at the support that the people of new generation are providing, the basic thing that this community wants is to live normally in the society with their own real identity, cant the people of this country even provide that, I would say YES we can, its not that difficult, even we are taking steps towards this too, so here i

end my research work and now i would like to ask you the same question after reading this blog, What do you think, Will our society be a safe place for the people of LGBTQ+ community ? Will there ever come a time when inclusivity in Indian Society is there?

Sources I used for my reference material:

- https://en.wikipedia.org/wiki/LGBTQ_rights_in_India
- <https://pmc.ncbi.nlm.nih.gov/articles/PMC9423841/>
- <https://timesofindia.indiatimes.com/blogs/voices/prejudice-social-stress-and-lack-of-acceptance-all-play-a-significant-role-in-the-mental-health-of-the-lgbtq-community/>
- <https://www.indiatoday.in/cities/chennai/story/greater-chennai-police-seeks-ban-on-grindr-app-from-centre-over-drug-links-meth-2707443-2025-04-11>
- <https://www.vice.com/en/article/grindr-sex-tortion-gang-india/>
- <https://lgbtqindiaresource.in/helpline/>
- <https://timesofindia.indiatimes.com/life-style/relationships/love-sex/legal-challenges-faced-by-lgbtq-couples-in-india-progress-and-remaining-hurdles/articleshow/110137735.cms>
- <https://theprint.in/india/neither-urban-nor-elitist-what-data-shows-about-indians-views-on-same-sex-relationships/1529820/>
- <https://vartagensex.org/wp-content/uploads/2019/10/1559396942000-min-gle-lgbt-wrkplc-climt-srvy-2016.pdf>
- <https://www.pewresearch.org/short-reads/2023/11/27/how-people-around-the-world-view-same-sex-marriage/>
- <https://www.dw.com/en/how-does-india-perceive-homosexuality/a-65345146>
- <https://saathii.in/lgbtq-health-rights-and-social-protection/>
- <https://www.hindustantimes.com/india-news/social-acceptance-of-same-sex-relations-remains-low-survey/story-kI9JHEGEx2hzcdmQQvYjOI.html>
- <https://www.theadvocatesforhumanrights.org/Res/TAHR%20India%20CPR%20LGBTIQ%20FINAL.pdf>

Thank you

